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Marine Advisory Note 04-2010

**Subject: United Nations Sanction Against the Democratic People's Republic of Korea –
UNSC Resolution 1874 (2009)**

To: All Ship Owners/Operators and Master's

This Advisory provides information regarding the implementation of the United Nations sanctions imposed against the Democratic People's Republic of Korea (DPRK) by United Nations Security Council Resolution 1874 (2009) dated 12 June 2009. This Advisory also includes guidance on the procedure that Liberian flag vessels should follow in order to comply with the requirements of this Resolution.

Background Information

The United Nations Security Council unanimously adopted Resolution 1874 (2009), which places an arms embargo on the DPRK. The Resolution effectively condemned DPRK's possession of nuclear weapons and condemned DPRK's implementation of any existing nuclear programs and also banned DPRK from engaging or involving with the supply, sale, transfer or export of any arms or related material. In enforcing this ban against DPRK, the United Nations Security Council urged States to "exercise vigilance" and to inspect any vessel cargo if the inspecting State has 'reasonable grounds' to believe the vessel contains sanction prohibited items from DPRK, in accordance with the Member State's national authorities and legislation.

The Republic of Liberia is a member of the United Nations and subject to observance of the mandatory United Nations Security Council Resolution. It is understood that Member States, such as Japan, intend to aggressively implement the mandate of Resolution 1874 (2009) by

inspecting the cargo of vessels, including Liberian flag vessels, on the high seas. Accordingly, the attention of Owners, Operators and Master of Liberian registered vessels is directed to paragraphs 11, 12 and 13 of Resolution 1874 (2009), which calls for the inspection of vessels by Member States where there are reasonable grounds that a vessel is carrying sanction prohibited items:

“11. *Calls upon* all States to inspect, in accordance with their national authorities and legislation, and consistent with international law, all cargo to and from the DPRK, in their territory, including seaports and airports, if the State concerned has information that provides reasonable grounds to believe the cargo contains items the supply, sale, transfer, or export of which is prohibited by paragraph 8 (a), 8 (b), or 8 (c) of resolution 1718 (2006) or by paragraph 9 or 10 of this resolution, for the purpose of ensuring strict implementation of those provisions;

“12. *Calls upon* all Member States to inspect vessels, with the consent of the flag State, on the high seas, if they have information that provides reasonable grounds to believe that the cargo of such vessels contains items the supply, sale, transfer, or export of which is prohibited by paragraph 8 (a), 8 (b), or 8 (c) of resolution 1718 (2006) or by paragraph 9 or 10 of this resolution, for the purpose of ensuring strict implementation of those provisions;

“13. *Calls upon* all States to cooperate with inspections pursuant to paragraphs 11 and 12, and, if the flag State does not consent to inspection on the high seas, *decides* that the flag State shall direct the vessel to proceed to an appropriate and convenient port for the required inspection by the local authorities pursuant to paragraph 11;”

The Resolution indicates that to inspect a vessel, the inspecting State must **a)** have the consent of the flag State and **b)** have information that provides reasonable grounds to believe that the cargo of such vessels contain items the Resolution prohibits (See paragraph 12 of Resolution 1874 (2009)).

Owners, Operators and Masters of Liberian flag vessels are required to obey the United Nations Security Council Resolution 1874 (2009).

Procedural Advisement

Paragraph 12 of Resolution 1874 (2009) requires the boarding and inspection to be done with the consent of the flag State. Therefore,

1. The inspecting State must first notify and request the consent of the flag State and provide the circumstances, nature and scope of the information that provides reasonable grounds for inspection.

2. A Liberian flag vessel that has been contacted by any Member State of the United Nations to inspect the vessel must immediately notify this flag Administration by email at: investigations@liscr.com and/or the LISCER Duty Officer at dutyofficer@liscr.com.
3. The Administration will quickly review the information and promptly respond to the request and also advise the vessel Owner/Operators with its determination.
4. If the determination is to allow inspection by the inspecting Member State, the ship Owner/Operator may request the presence of a flag State Inspector, during the inspection. If appropriate, the flag Administration may also assign a flag State Inspector to conduct a special inspection. If the flag State consents to the inspection and responds to the request of the inspecting Member State, the Owner/Operator of Liberian flag vessel involved will be required to cooperate with the inspection.
5. In accordance with paragraph 12 of United Nations Security Council Resolution 1874 (2009), if this flag Administration does not consent to the vessel inspection by the United Nations Member State requesting the inspection, then the Liberian flag State will direct the vessel to proceed to an appropriate and convenient port for the required inspection by the local authorities.

Owners and Operators should bring the contents of this Advisory to the attention of the Masters of their Liberian flag vessels and instruct them to exercise caution so as to avoid inappropriate incident or inadvertent violation of the sanctions.

Point of Contact

For further information regarding the issuance of this Advisory, please contact Michael Davies-Sekle via telephone at +1 (703) 251-2407 or via e-mail at mdavies@liscr.com or sean.brett@liscr.com or investigations@liscr.com.